

CALIFORNIA LEGISLATURE—2025-2026 SIMULATION SESSION

SENATE BILL

NO06

Introduced by Senator Strickland

September 25, 2025

To expand access to affordable housing options in California by allowing for low-density, locally determined housing development that avoids state mandates while giving cities and counties more flexibility to approve affordable units.

LEGISLATIVE COUNSEL’S DIGEST

SB 06 as introduced, Strickland. Affordable Housing Flexibility Act.

Existing law contains numerous provisions requiring local governments to adopt housing elements that accommodate their share of regional housing needs, as determined by the Regional Housing Needs Allocation (RHNA). Some laws also impose state mandates for high-density housing near transit corridors. These mandates have generated concerns in suburban and coastal communities about overdevelopment, infrastructure strain, and loss of local control.

This bill would create a voluntary framework for local governments to approve ~~low-density~~ *variable density* affordable housing projects without additional state mandates. The bill specifies that such projects must be ~~provided at below-market rates and~~ approved through ~~streamlined local~~ *modified* zoning procedures.

Vote: majority Appropriation: no Fiscal Committee: no Local Program: yes

THE PEOPLE OF THE STATE OF CALIFORNIA DO ENACT AS FOLLOWS:

SECTION 1. This act shall be known and may be cited as the *Affordable Housing Flexibility Act of 2025*.

SEC. 2. For purposes of this act:

(a) ~~“Low-density”~~ *“Variable density”* means as such:

~~(1) Housing units not exceeding three stories~~

(1) Designed as *low-rise residential buildings, including but not limited to:* duplexes, triplexes, townhomes, or ~~clustered small lot developments~~ *other small-scale residential forms as defined by local ordinance.*

(2) No more than ~~20~~ *30* units per acre.

(b) “Affordable” means as such: *Reserved for households earning less than area median income, consistent with Health and Safety Code Section 50093.*

~~(1) Reserved for households earning at or below 80 percent of area median income, consistent with Health and Safety Code Section 50093.~~

SEC. 3.

(a) A city or county may, at its discretion, adopt ordinances allowing for the approval of ~~low-density~~ *variable density* affordable housing developments, *as well as create ministerial committees with local authority to approve such housing developments*, under this act.

(b) Approval of such projects shall be ~~streamlined~~ *modified* by *ensuring that qualifying projects are not subject to additional state-level project review beyond what is required under existing housing law*.

~~(1) Exempting qualifying projects from additional discretionary review beyond local planning commission approval.~~

~~(2) Requiring ministerial approval where projects meet affordability and density standards under this act.~~

~~(c) A city or county approving such projects may count them toward satisfaction of its RHNA requirements~~ *Units approved under this section shall count toward a jurisdiction's RHNA obligations if they meet all applicable requirements established by the HCD* under Government Code Section 65584.

(d) Cities adopting ordinances under this act shall be eligible for priority consideration in state housing and infrastructure grant programs.

SEC. 4.

(a) Nothing in this act shall be construed to:

(1) Mandate local governments to approve any specific number of housing units.

(2) Supersede existing local zoning authority, except as expressly provided by this act.

~~(3) Require state-level intervention or override of local planning decisions.~~

SEC. 5. This act shall take effect on January 1, 2026.